



WESTERN BALKANS FUND

FIRST CONFERENCE OF MINISTERS OF FOREIGN AFFAIRS

Decisions

Following the entry into force of the “Agreement concerning the establishment of the Western Balkans Fund”, pursuant to Article 4 thereof,

The Conference of Ministers of Foreign Affairs of the Western Balkans Fund, constituted on the basis of Articles 7 and 8 of the “Statute of the Western Balkans Fund”:

- On the basis of Article 14 of the “Statute of the Western Balkans Fund”, approves and adopts the “Rules of Procedure of the Western Balkans Fund Secretariat”, which constitute Annex 1 hereto;
- On the basis of Article 25 of the “Statute of the Western Balkans Fund”, approves and adopts the “Rules of Procedure of the Council of Senior Officials of the Western Balkans Fund” which constitute Annex 2 hereto;
- On the basis of Article 29 of the “Statute of the Western Balkans Fund”, approves and adopts the “Rules governing rights and duties of the Executive Director and the Deputy Executive Director of the Western Balkans Fund” which constitute Annex 3 hereto;
- On the basis of Article 40 of the “Statute of the Western Balkans Fund”, approves and adopts the “Rules Governing the Use of the Financial Means of the Western Balkans Fund” which constitute Annex 4 hereto;
- On the basis of Article 28 of the “Statute of the Western Balkans Fund”, decides to appoint Dr. Gjergj Murra, as the first Executive Director of the Western Balkans Fund, with the mandate starting on 1 October 2017;

- On the basis of Article 27 of the “Statute of the Western Balkans Fund”, empowers the Executive Director to sign the Host Country Agreement between the Republic of Albania and the Western Balkans Fund.
- On the basis of Article 9 of the “Statute of the Western Balkans Fund”, decides that the Western Balkans Fund Chairmanship-in-Office for the period till the end of 2017- 31 December 2017 will be held by the Republic of Albania, to be followed for the year 2018 by Bosnia & Hercegovina.
- Gives authority to the Committee of Senior Officials to take the necessary decisions regarding the Western Balkans Fund Secretariat structure and other organizational issues.
- Decides to proclaim the official launching of the Western Balkans Fund and the beginning of its activities and operations;

Done in Bled, on 5 September 2017

Annex 1

Rules of Procedure of the Secretariat of the Western Balkans Fund

Article 1

The Secretariat of the Western Balkans Fund (hereinafter “Secretariat of the Fund”) is the main administrative body of the Fund and is established under the Agreement concluded in Prague on the 13th of November 2015 concerning the establishment of the Western Balkans Fund, hereafter referred to as the “Fund Agreement”.

Article 2

In its operation the Secretariat of the Fund shall perform its activities in full compliance with the Fund Agreement, the decisions of the Conference of Ministers of Foreign Affairs and the Council of Senior Officials, as well as internal guidelines of the Fund.

Article 3

- 1) The seat of the Secretariat of the Fund is: Rruga Skenderbej 8, Tirana, Albania.
- 2) In performing its functions, the Secretariat will fully comply with the Host Country Agreement between the Republic of Albania and the Western Balkans Fund.
- 3) The seal of the Secretariat of the Fund is composed from the Logo, referred to in Annex 1 of this Regulation, which includes the wording “Western Balkans Fund” and “Supporting Common Projects”.

Article 4

1. The Secretariat is headed by the Executive Director having full responsibility for its due operation.
2. The staff of the Secretariat shall follow the instructions issued by the Executive Director or the Deputy Executive Director in the performance of their duties and they shall keep confidentiality of Fund's internal activities with respect to the public.
3. In assisting the Executive Director, as regards the performance of his functions, the staff of the Secretariat shall perform those tasks within its mandate as defined by the Statute, including:
 - a. prepare and notify all Contracting Parties of Western Balkans Fund regarding convening meetings,
 - b. circulate the draft agenda and the necessary documents to each Contracting Party of Western Balkans Fund related to the meetings for the Conference, the Council and other meetings and events, organized by the Fund;
 - c. provide technical and administrative support for meetings of the Conference and the Council, including the preparation of the draft Agenda for these meetings;
 - d. prepare and circulate the draft Minutes of each Meeting, to all Contracting Parties of the Western Balkans Fund for comments;

- e. prepare in writing and submits to all Contracting Parties of Western Balkans Fund the decisions adopted by the Conference, the conclusions and the correspondence from the meetings and events organized by the Fund;
- f. assist the Executive Director and Deputy Executive Director in preparing and running meetings, communications and exchanges of views;
- g. facilitate liaison between the respective Ministries and other competent institutions of the Contracting Parties as well as with other relevant stakeholders in the Contracting Parties;
- h. foster relations and dialogue with other international and regional institutions and organizations;
- i. Disseminate information about the activities of the Fund.

4) The staff of the Secretariat shall perform their duties with due regard to the objectives and principles of the Western Balkans Fund in full conformity with Staff Regulations to be prepared by the Secretariat and approved by the Council of Senior Officials.

Article 5

These Rules of Procedure may be amended based on the consent of all Members of Western Balkans Fund. If any amendments or modifications of the current Rules of Procedure are adopted, they shall be incorporated in the present Rules of Procedure.

Article 6

These Rules shall enter into force on the day of their approval by the Conference of Ministers of Foreign Affairs.

Bled, September 5, 2017

Annex 2

Rules of Procedure of the Council of Senior Officials

Article 1

The basic framework for the work of the Council of Senior Officials is stipulated in Articles 17 to 26 of the Statute of the Western Balkans Fund.

Article 2

- 1) The Council of Senior Officials shall meet at least once every six months. The venue of the meeting shall be the seat of WBF or any other venue as agreed by the Contracting Parties.
- 2) At the proposal of the Chairperson, or written request of any of Contracting Parties, the Council may decide to meet in between these periods if it deems it appropriate for the implementation of the objectives defined in the Statute.
- 3) A written notice of convocation shall be sent by the Chairperson to all representatives at least (30) days prior to the session.
- 4) The Chairperson shall also inform the Executive Director of the convocation.

Article 3

The Executive Director shall present the draft agenda and other necessary documentation for the session of the Council of Senior Officials at least 14 days prior to the session.

Article 4

The Council of Senior Officials shall discuss written materials to be submitted to the Conference of Ministers for Foreign Affairs and any other issue raised in written by the Contracting Parties or/and the Executive Director.

Article 5

- 1) In addition to the provisions stipulated in the Fund's Statute, the Council shall approve in principle the submitted: guidelines / operating administrative procedures; the rules governing the preparation, acceptance and implementation of projects and any other dossier (documents, decisions, reports etc.), to the attention and/or final approval of the Conference.
- 2) The Council shall decide on the allocation of the Fund's financial resources to concrete projects.

Article 6

- 1) The Council may adopt a decision also in a summary written procedure.
- 2) The documents relevant for the adoption of a decision, shall be submitted to the Council by the Chairperson through the Secretariat either in written form or circulated to all members by electronic means, and their endorsement should be specifically stipulated by each of the members of the Council in the respective circulating message.
- 3) In case that no consensus has been reached by the members of the Council through the circulating message, the Council shall convene a special session within 30 days from the last exchange of messages.

Article 7

The Council shall discuss the "Annual overview of the Fund's financial resources spending" at the end of the budgetary year.

Article 8

The Council shall discuss all applications for project support which fulfill the eligibility criteria of the Call for Proposals, taking into account the relevant recommendations of the Executive Director, on behalf of the Secretariat. The Council shall submit the list of all approved projects to the Conference of Foreign Ministers for information.

Article 9

Decisions adopted at a session of the Council shall have the nature of recommendations for the Conference of Ministers of Foreign Affairs and they shall be binding for the Executive Director.

Article 10

In application of Article 23 of the Fund's Statute, decisions of the Council will be adopted by all members or their duly appointed representatives, present and voting. In case of the absence of a member, the procedures provided for in Article 6 above shall apply.

Article 11

- 1) A summary record of the sessions shall be prepared by the Secretariat. A provisional text shall be submitted to all members of the Council for corrections as soon as possible. At the beginning of each session the Council shall approve the summary records of the previous session.
- 2) The Executive Director shall arrange for the distribution of all documents and decisions adopted to all members of the Council not later than 7 working days after the close of each session.

Article 12

These Rules of Procedure shall enter into force on the day of their approval by the Conference of Ministers of Foreign Affairs.

Bled, September 5, 2017

Rules governing rights and duties of the Executive Director and the Deputy Executive Director

Article 1

The Executive Director and the Deputy Executive Director shall apply the relevant provisions as stipulated in "Chapter 6" of the Fund's Statute, decisions of the Conference of Ministers of Foreign Affairs and the Council of Senior Officials, as well as internal guidelines of the Fund.

Article 2

The Executive Director shall be the chief executive officer of the Fund and he/she shall act on its behalf. She/he shall head the Secretariat and shall be responsible for its management and functioning.

Article 3

The Executive Director shall co-ordinate the work of the Secretariat and performs activities necessary for the work of the Conference of Ministers of Foreign Affairs and the Council of Senior Officials, including timely submission and distribution of documents for the meetings.

Article 4

The Executive Director shall direct the processing of submitted applications for project funding and monitor the management of projects approved by the Council of Senior Officials.

Article 5

The Executive Director shall head all fundraising activities on behalf of the Fund. She/he shall ensure that no funding is received from sources not compatible with purposes and objectives of the Fund.

Article 6

The Executive Director shall conclude agreements on the implementation of projects approved by the Council of Senior Officials.

Article 7

The Executive Director shall be authorized to register the Fund under the national regulations of the Contracting Party in the territory of which it has its seat.

Article 8

The Executive Director shall be authorized to open a bank account of the Fund and to handle the funds on this account according to the guidelines of the Fund.

Article 9

The Executive Director shall conclude goods and services, purchase contracts for the needs of the Fund in compliance with the approved Budget of the Fund and the Rules Governing the Use of the Financial Means of the Western Balkans Fund.

Article 10

The Executive Director shall keep confidentiality of Fund's and its bodies internal activities with respect to the public.

Article 11

1) The Executive Director cannot undertake outside of the Fund any regular activity without having obtained the prior consent of the Council of Senior Officials; he/she cannot occupy any position incompatible with the achievement of his/her duties to the Fund.

2) If the Executive Director, in the exercise of his/her official duties, is required to deal with a matter which is connected to a company, association or trade undertaking in which he/she has an interest, he/she must inform the Council of Senior Officials of the nature and importance of this interest. The Council of Senior Officials shall make the appropriate decision.

Article 12

The Deputy Executive Director acts in accordance with orders of the Executive Director. The Deputy Executive Director shall perform the duties of the Executive Director in a case of the latter's absence, incapacity or during the period after the latter's office ended and until the new Executive Director has been duly appointed.

Article 13

These Rules shall enter into force on the day of their approval by the Conference of Ministers of Foreign Affairs.

Bled, on September 5, 2017

The Rules Governing the Use of the Financial Means of the Western Balkans Fund

Chapter I

Introductory Provisions

Article 1

The Fund shall manage its financial means according to the Budget approved by the Conference of Ministers of Foreign Affairs.

Article 2

The Executive Director shall propose the Fund's Draft Budget for the upcoming year and submit it for evaluation and endorsement to the Council of Senior Officials.

The Council of Senior Officials shall propose the endorsed draft budget for approval to the Conference of Ministers of Foreign Affairs by the last quarter of every year.

Article 3

The Financial year shall be identical with the calendar year. Bookkeeping for projects shall be in accordance with the approved implementation schedule as stated in each particular Contract.

Article 4

The Budget of the Fund consists of two parts:

- Project Funding Budget
- Fund's Operational Budget

Article 5

Donations, interest revenues and other financial means shall be considered as extra-budgetary resources. Usage of extra-budgetary resources is subject to endorsement by the Council of Senior Officials.

Chapter II

Use of Project Funding Budget

Article 6

The financial means of the Project Funding Budget are purpose dedicated grants, provided in compliance with the provisions of the Article 2 of the Statute.

Article 7

For the proper and transparent implementation of the overall Grant giving procedures, the Fund's Secretariat shall prepare a full set of necessary Guidance/Provisions to be approved by the Fund's Committee of Senior Officials.

Article 8

The Fund shall provide a grant only upon a written contract, which regulates concrete conditions for project funding.

Article 9

The Fund shall, as a rule, not provide funding to projects, which fall under public budgets funding.

Article 10

The financial contribution of the Fund shall usually not exceed 80% of the total project costs. The remaining funding may include in kind contribution of applicant, or contributions of other co-financing sources.

Article 11

Without prejudice of the provisions of the Article 9 and 10, the Council of Senior Officials may grant an exemption justified by the regional importance of the project.

Article 12

The Fund shall support projects involving implementing partners from at least 3 Contracting Parties.

Article 13

A legal entity or a natural person may apply to the Fund for a single grant during its forecasted, project cycle. There is no legal entitlement obliging the provision of financial resources by the Fund.

Article 14

The Council of Senior Officials shall decide on the use and granting of financial means from the Fund within the budgetary framework and in compliance with the priorities approved by the Conference of Ministers of Foreign Affairs.

In financing projects originating from the Contracting Parties, the Council of Senior Officials shall proceed following from the principle of balanced and proportional allocation of available funds.

Chapter III

Management of Fund's Operational Budget

Article 15

Fund's financial means are kept on official bank accounts, in Tirana

Article 16

The Executive Director shall be responsible for the management of the Fund's financial means according to the provisions of these Rules.

Article 17

The Executive Director shall manage the Fund's financial means in a transparent manner, efficiently and cost-effectively.

Article 18

An Auditing Committee shall control the financial management of the Fund. The Auditing Committee shall consist of the representatives of all Contracting Parties, nominated by the decision of the Council of Senior Officials. The Auditing Committee shall meet annually in Tirana.

The Auditing Committee shall present its report to the Council of Senior Officials, which shall adopt the necessary steps according to the findings.

Article 19

When procuring goods, services and works, the price of which is above euro 1,500 and less than euro 7,000, the most favourable offer out of three offers has to be selected. Purchase of goods and services above euro 7,000 is subject to a written approval by the Council of Senior Officials.

Article 20

The balance of Fund's financial means shall not expire after the closing of the accounts at the end of the financial year. The balance shall be transferred to the next financial year.

Article 21

These Rules shall enter into force on the day of their approval by the Conference of Ministers of Foreign Affairs.

Bled, on September 5, 2017